

DOCKET NO. 159-R10-07-2026

STEPHEN RAY JORDAN, Petitioner

v.

FRISCO INDEPENDENT SCHOOL DISTRICT, Respondent

BEFORE THE COMMISSIONER OF EDUCATION, STATE OF TEXAS

PETITIONER'S OBJECTIONS TO THE LOCAL RECORD

Petitioner Stephen Ray Jordan files these objections to the local record filed by Frisco Independent School District under 19 Texas Administrative Code Section 157.1073(e). The District served its Answer and certified its local record on September 16, 2026. These objections are timely.

I. The record is captioned in the wrong docket.

Every page of the certified local record, and the index that accompanies it, bears the caption Jordan v. Frisco ISD, Docket No. 120-R10-06-2026. That is a different proceeding. No page of the record bears the docket number of this appeal. Petitioner objects to a record certified in this docket that identifies a different docket throughout.

II. The record omits the entire Level Two proceeding and every determination after August 5, 2026.

The record closes on August 5, 2026. It contains no Level One decision of August 12, 2026, no notice of appeal to Level Two of August 18, 2026, no objection to the hearing officer assignment of August 24, 2026, no record of the Level Two conference held August 26, 2026, and no Level Two decision of September 14, 2026. The name of the Level Two hearing officer does not appear anywhere in the record.

The District certified that it uploaded all items identified in 19 Texas Administrative Code Section 157.1073(d). The record as filed is not the record of the proceedings at issue in this appeal. Petitioner objects and requests that the District be directed to supplement the record with the complete Level Two proceeding.

III. The record's own index places the Level One response before the Level One proceeding.

The District's index dates the Level One Response at July 20, 2026, the Level One Supporting Documentation at July 21, 2026, the emails scheduling the Level One grievance at August 4, 2026, and the emails providing the Level One response at August 5, 2026. As indexed, the District's Level One response precedes by two weeks both the submission of supporting documentation and the scheduling of the Level One grievance. The document the District designates as the Level One

Response is the July 20, 2026 finding issued under Board Policy FFH (LOCAL). Petitioner objects to the designation and to a record whose sequence cannot be reconciled on its face.

IV. The records Texas Education Code Section 37.105 requires the District to create and keep are absent.

The July 7, 2026 Summary of Investigation bars Petitioner from Iron Horse Aquatics events at the District's natatorium through December 31, 2026 and states that the District will pursue criminal trespass enforcement. If that action is a refusal of entry to or ejection from District property, Texas Education Code Section 37.105 required the District to create and maintain several records: a determination by a school administrator, school resource officer, or school district peace officer under Section 37.105(a); a record of the verbal warning under Section 37.105(a)(2)(A), maintained under Section 37.105(c) with the name of the person warned and the date of issuance; and the written information explaining the appeal process, provided to the person at the time of the ejection under Section 37.105(d).

None of those records appears in the certified local record. Petitioner requested them from the District in writing on September 17, 2026.

Under 19 Texas Administrative Code Section 157.1073(d), where a district fails to create or preserve the record without good cause, substantial evidence issues are deemed against the district. Petitioner objects to the omission and asks that the District either supplement the record with these documents or state on the record that they do not exist.

The Agency has previously determined that a district's criminal trespass warning against a parent was invalid. Petitioner does not ask the Agency to reach that question here, only to require that the records Section 37.105 obligates the District to create and keep be produced or declared nonexistent.

V. The District argues deference to a Board decision that does not exist in the record it filed.

The District's Answer argues that the substantial evidence standard gives significant deference to the school board and that the Commissioner reviews the record of the hearing, including the oral argument before the Board. The record the District filed contains no Board proceeding, no Board decision, and no oral argument before the Board. Under 19 Texas Administrative Code Section 157.1073(c)(1), the challenged event may be a failure to act. Petitioner objects to a deference argument premised on a Board action absent from the District's own record.

Conclusion

Petitioner asks that the District be directed to correct the caption, to supplement the record with the complete Level Two proceeding and with the records required by Texas Education Code Section 37.105 or to state that those records do not exist, and that any substantial evidence issue dependent on records the District failed to create or preserve be deemed against the District under 19 Texas Administrative Code Section 157.1073(d). Petitioner preserves all objections previously stated.

Stephen Ray Jordan, Pro se

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Certificate of Service

I certify that a copy of this filing was served on counsel for Frisco Independent School District, Rebecca L. Bradley, Abernathy, Roeder, Boyd & Hullett, P.C., rbradley@abernathy-law.com, on the date of filing, in accordance with the rules of the Texas Education Agency.

Stephen Ray Jordan